

Describe the primary procedures for settling disputes between employees and employers.

⇒ Disputes are common problem in a company even the best companies occasionally experience disputes over the treatment of employees.

⇒ Such disputes can be end up in court, where they are eventually resolved by a legal decision or settlement.

⇒ However, these disputes are resolved through different procedures.

1) Company Grievance procedures - شكایات

⇒ Also referred to as Complaint Resolution procedure.

⇒ it encourages the employees to voice their concern to the company instead of the courts and they encourage the employees to seek constructive resolutions without judicial proceeding or litigation.

⇒ All public and private unionized employees are covered by contracts

that specify formal written grievance procedures.

⇒ A typical company grievance procedure allows employees who feel they have experienced discrimination to use the following process to resolve the issue.

Step 1: Informal discussion:

⇒ When problem arise, the first step is to informal discussion with supervisor.

⇒ Sometimes this is all that needed to clear the air and establish positive working relationship.

⇒ if the supervisor is the source of problem, Step 1 may be skipped.

⇒ OR if the supervisor's response is not satisfactory the employee may move to step 2.

Step 2: Written Complaint:

⇒ The next step filling a formal written complaint with the department director, using forms provided by the employer.

⇒ These written form ^{answered} should be send by the director of the formal complaint
⇒ The employee and his or her supervisor are expected to discuss this written response from management.

Step 3: Grievance hearing:-

⇒ If the employee is not satisfied with management, he may request a grievance hearing with a Company Committee that includes both non-managerial and managerial representatives.
⇒ The Committee reaches and issues a written decision.

Step 4: Appeal:

⇒ Finally, if the employee or management is not satisfied with the informal Committee decision, they can appeal an appeal board.
⇒ The board's decision is final.

Benefits of this procedure:

- Increase employee loyalty & commitment
- Lower the legal costs associated with resolving disputes in the courts.

2) Mediation and Arbitration:

⇒ When disputes cannot be resolved through internal process another option before going to the court is Alternative dispute resolution.

Alternative dispute resolution:-

⇒ involves making an agreement to forego litigation and instead resolve disputes by either external or internal mediations or arbitration.

⇒ Mediation and arbitration are two most common methods of alternative dispute resolution.

1) Mediation:

⇒ In mediation, all concerned parties present their case to a third party, the mediator.

⇒ mediators may be appointed by a judge, selected by the parties or their representatives or recommended by agencies as the EEOC.

⇒ Each side presents its arguments in a private meeting with the mediators.

⇒ The mediator's role is to help the parties understand each other's views.

⇒ Also helps each party to understand the strengths and weaknesses of its own case.

⇒ The ultimate goal is to steer the parties toward compromise and to construct a fair settlement.

ii) Arbitration:

⇒ It is a more formal process for alternative dispute resolution that includes third parties who render a judgment, yet it is not so formal that the rules of a court must be followed.

⇒ Employees must be permitted to have a representative for their case, and the representative must present the cases in a formal manner.

⇒ Typically, decisions are rendered by a panel of arbitrators.

⇒ Arbitrators do not need to provide written decisions or use previous cases in rendering their decisions.

Why these methods are used?

⇒ Because:

o. The courts are slow, expensive and difficult way to resolve serious disputes.

3) Using the Courts to settle disputes:

⇒ Some disputes result in a lawsuit.

⇒ For employment cases that resolved in court, two common remedies to violations are monetary damages and settlement agreements.

i) Monetary damages:

⇒ If the court determines that an employee's legal right has been violated and that this has resulted in injury, the defendant (employer)

may be required to pay monetary damages to the plaintiff (employee).

=> Compensatory monetary damages are intended to help victims retrieve what they have lost

=> Punitive monetary damages are ^{سزاوارتی} intended specifically to punish wrongdoers and deter ^{بازدار} future wrong doing.

ii.) Settlement agreements:

=> Law suits are resolved by settlement agreements, in which the employers does not admit to wrongdoing but nevertheless agree to pay money to the employee.